ARTICLE 6. To see if the Town will vote to amend the Winchester Zoning Bylaw by amending Sections 9.4.3, 9.5.4, and 9.5.5 to remove the required number of paper copies for special permit and site plan review applications, deferring submission requirements to the rules and regulations of the Special Permit Granting Authority; by amending Section 9.5.5 to assign transmittal of site plan applications to the SPGA and extend the transmittal period from three to five days; and by amending Section 9.5.6 to provide that where a use requires both site plan review and a special permit, the site plan shall be reviewed as part of the special permit application with a single hearing and decision; all as set forth below; or take any other action in relation thereto.

Text to be added is indicated by underlined text and text to be removed is indicated by ~~strikethrough text~~.

1. Amend Section 9.4.3, Procedures, by deleting the sentence prescribing paper-copy submission, whose requirements move into the SPGA's rules and regulations, as follows:

Special permit applications shall be governed by the rules and regulations of the Special Permit Granting Authority. ~~Whenever an application for a special permit is filed with a Special Permit Granting Authority, the applicant shall file 18 paper copies (and an electronic copy) of the submission at the Building Department.~~ Within five (5) working days of the filing of the completed application with said authority, copies of the application, accompanying site plan, and other documentation shall be forwarded by the Board of Appeals Clerk to the Planning Board, Board of Health, Town Engineer, Conservation Commission, Building Commissioner, Director of Public Works, Police Chief, Fire Chief, the Design Review Committee, Disability Access Commission and Historical Commission for their consideration, review, and recommendations.

2. Amend Section 9.5.4, Application, by deleting the reference specifying the number of copies, whose requirements move into the SPGA's rules and regulations, as follows:

A person applying for site plan approval hereunder shall file with the Board of Appeals ~~20 copies and an electronic version of each application and site plan and a filing fee~~. Such application and site plan shall include the information the Board of Appeals shall reasonably require by rule or regulation. All site plan review applications shall incorporate the size and illustrate all rooftop equipment into the drawings, renderings, and elevations submitted. In subsequent applications concerning the same subject matter, the Board may waive the filing of plans and documents to the extent they duplicate those previously filed.

3. Amend Section 9.5.5, Review by Other Boards, by deleting the specified number of copies, and increasing the number of days to transmit applications to match special permit requirements, as follows (the remainder of Section 9.5.5 is unchanged):

The ~~Board of Appeals~~SPGA shall within ~~three (3)~~five (5) days (Saturdays, Sundays and holidays excluded) of receipt of them transmit to the Conservation Commission, the Historical Commission, the Design Review Committee, Disability Access Commission and the Planning Board ~~two (2)~~ copies of the above application and site plan…

4. Amend Section 9.5.6, Public Hearing, by adding the following paragraph after the existing paragraph, establishing a combined process where a project requires both site plan review and a special permit:

Notwithstanding the foregoing, where site plan review is required for a use that also requires a special permit, the site plan shall be reviewed as part of the special permit application under Section 9.4, and no separate site plan review hearing or decision shall be required (see Section 9.5.3). In such case, the public hearing and the time for final action shall be governed by the procedures and time limits applicable to the special permit under G.L. c. 40A, s. 9.

(Planning Board)

MOTION: MOVED AND SECONDED that the Town approve Article 6 as printed in the Warrant.

BACKGROUND: *With the move to online permitting, the paper copies the bylaw still requires are rarely distributed and often immediately recycled. In the interest of saving money, time, and paper, this article defers submission requirements to the existing rules and regulations of each Special Permit Granting Authority (SPGA). It also replaces certain references to the Board of Appeals with the SPGA, matches the site plan transmittal period to the five days used for special permits, and puts into writing the current practice of reviewing site plans and special permits together.*

2/3rd Vote Required